

20STCV38308 20STCV38308

County: los-angeles

Division: Civil Law and Motion

Department: I

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20STCV38308 ABEL

LUNA, et al. vs RAMIRO RIOS JASSO, et al.

August 13, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Minor's Comp.

I.

Background

On October 5, 2020, Plaintiffs Abel Luna ("Abel"), Robert Reyes ("Reyes"), and Samantha I., a minor by and through her guardian ad litem Imelda Luna ("Claimant")(collectively "Plaintiffs") filed a complaint against Ramiro Rios Jasso ("Jasso"), Golden Express Transport, Inc. ("Golden Express")(collectively "Defendants"), and Does 1 to 100 alleging two causes of action: (1) negligence; and (2) statutory liability.

On November 23, 2022, Defendants filed a cross-complaint against Elizabeth Luna ("Elizabeth") and Roes 1 to 50 alleging three causes of action: (1) equitable/implied indemnity; (2) apportionment and contribution; and (3) declaratory relief.

On December 23, 2025, Plaintiffs filed a notice of settlement.

On July 21, 2026, Imelda Luna (hereinafter

“Petitioner”) filed the instant petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability on behalf of Claimant.

II. Petition

for Approval of Compromised Claim

Court approval is required for all settlements of a minor’s claim. (Cal. Prob. Code §§ 3500, 3600, et seq.; Cal. Code of Civ. Proc. § 372.) “[W]ithout trial court approval of the proposed compromise of the ward’s claim, the settlement cannot be valid. [Citation.] Nor is the settlement binding [on the minor] until it is endorsed by the trial court.” (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, “shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case.” (CCP § 372(a)(1).) Alternatively, the petitioner may file a declaration demonstrating that he or she has a right to compromise the minor’s claim under Prob. Code § 3500.

Regarding the substance of the petition, to obtain court approval of the settlement of a minor’s claim, the petitioner must file a complete and “verified petition for approval of the settlement and must disclose ‘all information that has any bearing upon the reasonableness of the compromise.’ [Citations.]” (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249, 256; Cal. Rules of Court Rule 7.950.)

Petitioner seeks court approval for a settlement under which Claimant would receive \$100,001.00. (See MC-350 Item 10.) Claimant suffered injury from a motor vehicle accident, incurring various fractures and traumatic injuries. (Id. at Items 5-6.) Notably, an additional \$100,001.00 is to be paid to Reyes, and \$25,000.00 to Abel. (Id. at Item 11.) Of the settlement amount, \$37,500.37 will be paid as medical expenses, and \$31,250.31 as attorney’s fees, leaving Claimant with a net settlement amount of \$31,250.32. (Id. at Item 16.) Settlement funds are to be deposited in a single-premium deferred annuity, subject to withdrawal only on authorization of the court. (Id. at Item 18b.)

Petitioner provides the reason for apportionment of settlement as Attachment 11b(6). (See MC-350 Attachment 11b(6).) Petitioner also provides evidence of legal expenses as Attachment 13b. (Id. at

Attachment 13b.) Attorney's fees are reasonable. (Ibid.) The annuity plan is provided as Attachment 18b(3). (Id. at Attachment 18b(3).)

Based on the foregoing, the instant petition is GRANTED. The Court will sign the proposed Order.

Petitioner to give notice.